

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE RAYMOND P. MOORE**

Courtroom Deputy: Cathy Pearson
Court Reporter: Tammy Hoffschildt

Date: February 14, 2019

CASE NO. 15-cv-02785-RM-NYW

STEVEN LEE BRANDT,
JAMES CLAY WALKER, and
COLORADO BOX COMPANY, INC.,

Ian Walsworth
Alyssa Sandrowitz
William Mauke

Plaintiffs,

v.

VON HONNECKE,
CHASE HONNECKE, and
S&H SHEET METAL, INC.,

Scott Terrell

Defendants.

COURTROOM MINUTES

JURY TRIAL – DAY 4

COURT IN SESSION: 9:33 a.m. Jury panel is present

Counsel present. Plaintiffs are present. Defendants are present.

9:34 a.m. Continued cross-examination of Von Honnecke by Mr. Walsworth.
Exhibits admitted: Plaintiffs' Exhibit 3, 47, 139, 23.

10:17 a.m. Redirect examination of Von Honnecke by Mr. Terrell.

10:32 a.m. Witness is excused.

Defendants rest.

10:33 a.m. Plaintiffs' rebuttal witness, Steven Lee Brandt, is sworn and examined by Mr. Walsworth.

10:38 a.m. Cross-examination of Steven Lee Brandt by Mr. Terrell.

10:40 a.m. Witness is excused.

Plaintiff rests. Defendant rests.

10:41 a.m. Jury is excused until 1:00 p.m. today.

Discussion held regarding closing arguments and scheduling matters.

Court in recess: 10:42 a.m.

Court in session: 10:54 a.m. Jury is not present.

Discussion held regarding jury instructions and the verdict form.

Court in recess: 11:28 a.m.

Court in session: 11:31 a.m. Jury is not present.

Further discussion held regarding jury instructions and verdict form.

Court in recess: 11:36 a.m.

Court in session: 1:01 p.m. Jury is not present.

1:03 p.m. Jury is present.

1:05 p.m. Closing argument given by Mr. Walsworth.

2:23 p.m. Closing argument given by Mr. Terrell.

3:29 p.m. Rebuttal argument by Mr. Walsworth.

3:37 p.m. Jury is excused.

Discussion held regarding jury instructions.

Court in recess: 3:39 p.m.

Court in session: 3:45 p.m.

The Court instructs the jury.

4:47 p.m. Court Security Officer is sworn.

4:51 p.m. The jury is excused.

Court in recess: 4:52 p.m.

Court in session: 5:01 p.m. Jury is present.

The jury is excused until 9:00 a.m. on February 15, 2019, and will begin deliberations at that time.

ORDERED: Lunch will be provided to the jury during their deliberations.

COURT IN RECESS: 5:06 p.m.

Total in court time: 5:39

Trial continued